

Amendment No. 1 to SB1388

Crowe
Signature of Sponsor

AMEND Senate Bill No. 1388

House Bill No. 1066*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 4, Part 5, is amended by adding the following as new sections:

71-4-510.

(a) The department shall establish and implement by rule a process by which management of a public property may submit formal complaints regarding the conduct or performance of a blind individual who has been licensed by the department to operate a vending facility on such public property through the business enterprise program for the blind.

(b) If a complaint is substantiated upon investigation by the department, then the department shall subject the licensed blind vending facility operator to a plan of corrective action and may subject the operator to further disciplinary action, including, but not limited to, retraining, placing the license in probationary status, emergency removal, and removal for cause.

71-4-511.

(a) As used in this section, "eligible individual with a disability" means a person with a disability who is a resident of this state, whose vocational rehabilitation is determined feasible by the department of human services division of rehabilitation services, and who has been determined eligible to receive vocational rehabilitation services with an individualized plan for employment (IPE) pursuant to Title I of the Rehabilitation Act of 1973 (29 U.S.C. § 701 et seq.), as amended.

(b) Notwithstanding this part to the contrary, the department shall establish and implement by rule a process for self-employment and entrepreneurship that provides an eligible individual with a disability the opportunity, as part of the individual's IPE, to be trained and licensed to operate vending facilities on public properties for which the department has first priority pursuant to this part, but where licensed blind vending facility operators through the business enterprise program for the blind have chosen not to operate at such vending facilities or at such vending facilities that are not generating unassigned income pursuant to § 71-4-504 on the effective date of this act. However, the department shall continue to retain first preference for operating vending facilities on public property for licensed blind vending facility operators, and shall assign second preference for operating such facilities to licensed non-blind eligible individuals with disabilities pursuant to the department's priority established under this part.

(c) The department shall include a process for receiving and investigating complaints from public property management regarding the conduct or performance of a non-blind eligible individual with a disability who operates a vending facility on such public property.

(d)

(1) Funding for the goods, services, initial stock, or other regular business expenses approved by the department for a licensed non-blind eligible individual with a disability to operate a vending facility must be provided in accordance with the individual's IPE.

(2) In accordance with the Randolph-Sheppard Act (20 U.S.C. § 107 et seq.), funds used for licensed blind vending facility operators through the business enterprise program for the blind, including set-aside, unassigned, and business enterprise program funds, must not be used for licensed non-blind eligible individuals with disabilities who operate a vending facility pursuant to this section.

(e) When a licensed non-blind eligible individual with a disability ceases to operate a vending facility on a public property pursuant to this section, the department shall first determine whether licensed blind vending facility operators through the business enterprise program for the blind continue to choose not to operate the vending facility before assigning the vending facility to another licensed non-blind eligible individual with a disability.

SECTION 2. The department shall promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.